

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LUCIA WATERMAN,

Petitioner

VS.

MATTHEW CHARLES,

Respondent

) Case Number: FPT-25-378598

) Hearing Date: July 2, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Lucia Waterman (Mother) and Respondent Matthew Charles (Father).
The minor child subject to this proceeding is Lyla Waterman Charles (DOB 09/23/2022).
- 2) On March 28, 2025, Mother filed an ex parte Request for Temporary Emergency Orders for an interim custody and visitation schedule. The Court issued temporary orders awarding the parents joint legal and physical custody of the child. Father was granted temporary visitation (parenting time) as follows:
 - a. Every Monday from 8:30 AM to 12:30 PM;
 - b. Every Tuesday from 8:15 AM until drop off at school;
 - c. Every Wednesday from 8:30 AM to 4:30 PM; and
 - d. Every Saturday from 8:30 AM to 6:30 PM.
- 3) The parties were referred to Family Court Services for mediation with a return court date of June 3, 2025.

- 1 4) On June 3, 2025, the court reaffirmed its temporary order of joint legal and physical custody of
2 the child and set out a detailed step-up parenting time schedule. The parenting schedule for Father
3 was ordered, effective August 22, 2025, as follows:
- 4 a. Every Monday from 8:30 AM until 4:30 PM;
 - 5 b. Every Wednesday from 8:30 AM until 4:30 PM; and
 - 6 c. Every other Friday from 4:30 PM Sunday at 6:30 PM.
- 7 5) A review hearing was set on January 13, 2026, and the parties were referred to Family Court
8 Services for mediation regarding parenting time issues and a holiday schedule.
- 9 6) On December 4, 2025, the parties filed a Stipulation and Order regarding Child Custody in which
10 they agreed to continue to share joint legal and physical custody of Lyla. The parties also agreed
11 to a parenting plan for Father every Tuesday and Thursday from 8:30 AM until 4:30 PM. Father
12 would not have in person parenting time with Lyla on Mondays and Wednesdays each week but
13 would continue to have parenting time with Lyla every other weekend from Friday at 6:30 PM to
14 Sunday at 6:30 PM. The parties also agreed that if either parent will be away from Lyla for four
15 consecutive days or more as a result of the regular or holiday or vacation schedule, the custodial
16 parent shall facilitate a 15-minute Facetime Call with the noncustodial parent during that period.
- 17 7) The parties attended Family Court Services mediation on December 15, 2025, but were unable to
18 come to any further agreement on visitation.
- 19 8) On December 23, 2025, Mother filed a declaration requesting the current parenting schedule
20 remain in place pending a further review hearing and contending that Father's requested 50/50
21 timeshare would be detrimental to Lyla. Mother requests that a further review hearing on
22 parenting time be scheduled in 6 months.
- 23 9) On December 24, 2025, Father filed a declaration for the review hearing requesting a 50/50
24 parenting plan of 2-2-5-5 and asserting that a 2-2-5-5 parenting plans is in the child's best
25 interests.
- 26 10) On December 15, 2025, the parties attended mediation and were unable to reach an agreement on
27 parenting time and co-parent counseling.
- 28 a. Mother requests that Father's current parenting schedule remain in place, and she does
29 not agree to participating in co-parenting counseling.

- b. Father requests a 2-2-3 parenting plan and that the parents participate in co-parent counseling with the cost being shared by both parents.

11) On January 13, 2026, a further review hearing was held and the Court issued the following orders:

- a. Review hearing set on July 2, 2026 for review of child custody and parenting plan.
- b. The current parenting plan as set forth in the Stipulation and Order filed December 4, 2025 shall remain the continued parenting schedule pending the review hearing scheduled below.
- c. The parents are ordered to attend co-parent counseling with the cost shared equally by both parties.
- d. All current orders not in conflict with this order shall remain in full force and effect.

12) On June 18, 2026, Father filed an update declaration, which has been read and considered by the Court.

13) On June 22, 2026, Mother filed an update declaration, which has been read and considered by the Court.

B. Findings and Order

1) This court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.

2) The parenting plan shall be modified to a rotating 2/2/3 schedule, which will commence on Sunday, July 5, 2026. The schedule shall be implemented as follows:

- a. Commencing the week of July 5, 2026: Mother shall have care and custody of the minor child on Monday and Tuesday; Father shall have care and custody of the minor child on Wednesday and Thursday; and Mother shall have Friday – Sunday.
- b. Commencing the week of July 12, 2026: Father shall have care and custody of the minor child on Monday and Tuesday; Mother shall have care and custody of the minor child on Wednesday and Thursday; and Father shall have Friday – Sunday.
- c. The above noted schedule will alternate weekly as stated above.

1 d. Exchange times will occur Mondays, Wednesdays, and Fridays at 8:30 a.m. The
2 receiving parent will pick up the minor child from the other parent.

3 3) Both parents shall have one video call with the minor child, during each day of the other parent's
4 custodial time. The video calls shall occur between the hours of 6:30 p.m. – 7:30 p.m. The video
5 calls shall not be in any duration longer than 15 minutes.

6 4) All current orders not in conflict with this order shall remain in full force and effect.

7 5) Counsel for Mother shall prepare the Findings and Order After Hearing.

8 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
9 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
10 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
11 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
12 proposed order after hearing directly to the court. Failure to submit the order after hearing within
13 10 days may allow the other party to prepare a proposed order and submit it to the court in
14 accordance with CA Rules of Court, Rule 5.125(d).